TextMe, Inc. Privacy Notice

This Privacy Notice ("Notice") applies to personal data TextMe, Inc. ("TextMe," "we," "us," or "our") collects. This Notice also covers rights and choices related to your personal data.

Data We Collect

How We Use Data

How We Share Data

Your Choices

How We Protect and Retain Data

Transmission Of Data To Other Countries

Third-Party Applications/Websites

Changes To This Privacy Notice

Children

Contact Information

Additional Information For California Residents

Data We Collect

We collect data about you in different ways. For example, we collect data:

- Directly from you. This includes when you make an account or contact us.
- Automatically. This includes through logs and other tools used to provide our app-based service.
- From other sources. These can include our other customers, vendors, publicly available sources, and other companies.

The following are a few examples of our collection and use of data:

Context	Examples of Personal data	Primary Purpose and Legal Basis
Account Registration	We collect your name and email address. We also collect data on the actions that you perform while logged in.	We have a legitimate interest in providing account related functionalities to users. Accounts can offer easy checkout, saved preferences, and purchase history.

Context	Examples of Personal data	Primary Purpose and Legal Basis
Transactional Information	We maintain records of how much, and how, you use our services, and whether you have signed up for premium service.	We use this information to perform our obligations to customers. We also have a legitimate interest in understanding our customers' usage and offering them additional services.
Phone numbers and contact information	We collect the phone numbers that you use, as well as information about your text recipients, such as name and phone number.	We use this information to perform our obligations to customers. We also have a legitimate interest in using this information to protect against fraud, unlawful activity, harm to ourselves or others, unauthorized use of our services, or technical issues. We also have a legitimate interest in complying with the laws to which we are subject. Some of those laws may require that we disclose this information to government authorities.
App-based communications	If you use our service to communicate, we may process your communications as part of providing the service and for security and fraud detection.	We use this information to perform our obligations to customers to provide a communication service. We also have a legitimate interest in detecting and preventing fraud, as well as complying with the laws of the jurisdictions in which we operate.
App-based targeted advertising	We may let third parties receive information about you, such as your IP address, to serve ads tailored to your interests. These may include ads about our products or services, or ads about other companies products or services.	Where required by law we obtain your consent before sharing information for the purpose of targeted advertising. We have a legitimate interest in allowing targeted advertising to provide you with more tailored advertisements and to help support our App. You can find information on your options regarding this technology in the Your Choices section below.
Website Targeted Advertising Technology	We may let third parties place tracking technology on our websites (e.g., a cookie or a pixel). The third party might also collect data over time and across other websites. Among other things, they may use this data to serve ads tailored to your interests, which may include ads about our products or services.	Where required by law, we base the use of third-party tracking technologies upon consent.

Context	Examples of Personal data	Primary Purpose and Legal Basis
Location Sharing With Other People	Our apps may ask if you would like to share your location with another person. If you opt-in, we may collect your precise location.	We obtain your consent before sharing your location information. We only use it for the purpose to which you direct us.
Location Sharing with Emergency Providers	Our apps may share general location information (e.g., derived from IP address) with emergency responders.	We provide this information in order to protect you, or other people, when you seek emergency services.
Suggesting Area Codes	Our apps may ask if you would like us to collect your location for the purpose of suggesting a local area code.	We obtain your consent before collecting your location information.
Job Applicants	If you apply for a job, we collect information needed to process your application. This may include your social security number. Providing this information is required for employment.	In some contexts, we are required by law to collect data about applicants. We also have a legitimate interest in using data to evaluate your application or consider you for other positions. If you become an employee, we will provide you with a separate privacy notice that explains how we collect, use, and share additional data about our employees.
Feedback/Support	If you provide feedback or contact us for support, we collect your name and email, as well as other content that you send.	We have a legitimate interest in receiving and acting upon feedback.
Surveys	We collect data you share through surveys. If a third-party offers a survey, the third party's privacy notice also applies to the collection, use, and disclosure of your data.	We have a legitimate interest in understanding your opinions.

If you are in Canada, our lawful basis for processing your data is generally consent.

How We Use Data

We also use data to:

- To deliver our products and services.

- Complete transactions.
- Improve or create services and products.
- Streamline checkouts.
- Conduct analytics.
- Connect with you (e.g., addressing your requests, inquiries, issues, or feedback).
- Market our products or services.
- Market the products or services of other companies.
- Find and prevent malicious, deceptive, fraudulent, or illegal activity.
- Find and prevent security incidents.
- Enforce our policies and agreements.
- Debug, find, and fix errors that impair our website and services.
- Comply with legal or regulatory obligations.
- Establish or exercise our rights.
- Defend against legal claims.
- Manage our relationships.
- For other reasons with your consent.

The sections above describe our main purposes in collecting your data, but often we have multiple purposes. For instance, if you upgrade your service, we may collect your information to perform our contract with you. We also have a legitimate interest in maintaining that data so that we can easily address questions about your services. As a result, our collection and processing of your data is based in different contexts on your consent, our need to perform a contract, our legal obligations, and/or our legitimate interest in conducting our business.

To the extent we store and use deidentified personal data, we will not try to reidentify the information, except to test our deidentification methods.

How We Share Data

In addition to the specific situations discussed elsewhere in this Notice we may share personal data in the following situations:

- **Affiliates and Acquisitions.** We may share data with our affiliates (e.g., parent company, sister companies, subsidiaries, joint ventures, or other companies under common control). If a company acquires or enters negotiations to acquire, our company, business, or assets, we may share data with that company.

- **Other Disclosures without Your Consent.** We may share data to cooperate with law enforcement, participate in a legal process, or for legal compliance. We may share your data to establish or exercise our rights, to defend against legal claims, to investigate, prevent, or act on possible illegal activities, threats to safety of person or property, or a violation of our policies. Your data may be shared to ship products to you.
- **Service Providers.** We may share your data with service providers. Service providers may help us to run our website, conduct surveys, provide technical support, process payments, fulfill orders, and more.
- **Professional Services.** We may share personal data with our professional service providers, such as auditors or lawyers.
- **Other Disclosures with Your Consent.** We may share your data with third parties when you consent or direct us to.

Some areas require us to disclose whether the following categories of personal data are collected, shared with third parties for a "business purpose," or "sold," or transferred for "valuable consideration." The table below indicates the categories of personal data we collect and transfer in a variety of contexts. We do not "sell" your personal data for money.

Category of Personal Data	**Category of Recipients**	
	Disclosures for a Business Purpose	**Sharing for Targeted Advertising**
Identifiers - this may include things like name, alias, postal address, IP address, unique personal identifier, online identifier, email address, or account name.	• Our Service Providers. • Data analytics providers. • Professional services organizations, this may include auditors and law firms.	• Advertising networks.
Financial Information – this may include bank account number, credit card number, debit card number, and other financial information.	• Our Service Providers. • Payment processors. • Professional services organizations, this may include auditors and law firms.	N/A.
Commercial information – this may include information about products or services purchased,	• Our Service Providers.	N/A.

Category of Personal Data	Category of Recipients	
	Disclosures for a Business Purpose	**Sharing for Targeted Advertising**
obtained, or considered, or other purchasing or consuming histories or tendencies.	• Data analytics providers. • Professional services organizations, this may include auditors and law firms.	
Biometric information - this may include a biological or behavioral characteristic used to establish a person's identity.	• Our Service Providers. • Professional services organizations, this may include auditors and law firms.	N/A.
Internet or other electronic network activity information – this may include browsing history, search history, and information regarding an individual's interaction with an internet website, app, or ad.	• Our Service Providers. • Data analytics providers. • Professional services organizations, this may include auditors and law firms.	• Advertising networks.
Geolocation data - this could include precise or non-precise geolocation information.	• Our Service Providers. • Data analytics providers (non-precise). • Professional services organizations, this may include auditors and law firms.	N/A.
Professional or employment-related information – this includes, for example, information submitted by job applicants.	• Our Service Providers. • Professional services organizations, this may include auditors and law firms.	N/A.

Category of Personal Data	Category of Recipients	
	Disclosures for a Business Purpose	Sharing for Targeted Advertising
Inferences drawn from any of the information listed above	• Our Service Providers. • Data analytics providers. • Professional services organizations, this may include auditors and law firms.	N/A.

Your Choices

Some jurisdictions give you a right to make the following choices:

- **Access.** You may request access to your personal data or confirmation that we have data about you. In certain limited cases, you may ask to receive access to your data in a portable, machine-readable form.
- **List of Third-Party Recipients.** You may find a list of specific third parties to which we may disclose personal information here. Some areas also allow you to obtain a list of the categories of third parties to which we have disclosed personal information. You can find that information in the table above under the "How We Share Data" section.
- **Change.** Our App allows you to change your account profile. If our App does not permit you to update or correct certain information, you can ask us to correct inaccurate or incomplete data by contacting us at the address below. We may keep historical data in our backup files as permitted by law.
- **Deletion.** You may ask us to delete your personal data. If required by law, we will grant such a request, but note that in many cases, we must keep your personal data to comply with legal obligations, resolve disputes, enforce agreements, or for other business purposes.
- **Opt-out of Targeted Advertising.** You may opt-out of targeted advertising within our App by turning on the feature called "Limit Ad Tracking" located in the settings of your iOS device, or changing the settings called “opt-out of interest-based ads” in your Android device.
- **Objection to or Restriction of Certain Processing.** In certain circumstances, you may object to the processing of your personal data, or ask that we restrict processing of your personal data. To do so, follow the instructions below.

- **Revocation Of Consent.** Where we process your personal data based upon consent, you may revoke consent. Note, if you revoke consent for processing personal data, we may no longer be able to provide you some types of services.
- **Geolocation Data.** You can turn off geolocation data for mobile apps through your mobile device's privacy settings.

Not all the rights above are absolute, and they do not apply in all circumstances. We may limit or deny a request because the law permits or requires us to. We will not discriminate against individuals who exercise a privacy right.

Submitting Requests

You may exercise the above rights via the privacy center within the app or by contacting us. If you disagree with our denial of a request, you may appeal our decision by contacting us with the subject line "Appeal."

We will require you to prove your identity when making most types of requests. We may verify your identity by phone or email. Depending on your request, we will ask for information such as your name, your transactions with us, or the ways in which you have used our service. We may also ask you to send us a signed declaration confirming your identity.

How We Protect and Retain Data

No method of internet transmission or electronic storage is fully secure. While we use reasonable efforts to protect personal data, we cannot guarantee its security. If we are required to inform you about a security incident, we will do so electronically, in writing, or by phone, as the law permits.

Some of our websites permit you to create an account. You are responsible for selecting a unique and complex password and keeping it confidential. You are responsible for any access to or use of your account by someone who has obtained your password, whether or not you approved of such access or use. Notify us of unauthorized use of your password or account immediately.

We keep your personal data for only as long as necessary to fulfil the purposes in this Notice unless a longer retention period is required or permitted by law. This includes the purposes of satisfying legal, accounting, or reporting requirements. To determine the appropriate retention period for personal data, we consider the amount, nature, and sensitivity of the data. We also weigh the potential risk of harm from unauthorized use or disclosure of the data, the purposes for which we obtained the data and whether we can meet those purposes through other means, as well as applicable legal requirements.

Transmission Of Data To Other Countries

We are based in the United States. If you are located in a country other than the United States and choose to use our service, note that you are making a decision to transmit your information to the United States. The privacy laws of the United States may be different, and in some respects not as strenuous, as the privacy laws of the country in which you are located.

Third-Party Applications/Websites

We may provide links to websites and other third-party content or services that we do not own or operate. We have no control over the privacy practices of websites or services we do not own. For details about such third parties' privacy practices, see their privacy notices.

Changes To This Privacy Notice

We may change our Notice and privacy practices. New notices will be published on our website. If changes are material, the Notice that was in place when you submitted personal data to us will generally govern that data unless you consent to the new Notice. Our Notice shows “effective" and "last updated" dates below. The effective date is the date the current version took effect. The last updated date is the date the current version was last substantively changed.

Children

Our services are not meant for children under 13 years old, and we do not knowingly collect personal data from children under age 16 without parental consent. Children under 13 should not give us their personal data.

Contact Information

If you have questions, comments, or complaints on our privacy practices, or if you need to access this Notice in a different form due to a disability, please contact us at contactprivacy@go-text.me.

If you are not satisfied with our response and are in the European Union or United Kingdom, you may have a right to lodge a complaint with your local supervisory authority.

Additional Information For California Residents

We collect the following categories of sensitive personal information (as defined under California law): financial information, precise geolocation, contents of consumer messages, and biometric information

(e.g., profile picture). This information is collected in order to process transactions, comply with laws, manage our business, or provide you with services. Note that we do not use such information for any purposes that are not identified within the California Consumer Privacy Act Section 1798.121. We do not “sell” or “share” sensitive personal information for purposes of cross-context behavioral advertising.

Effective Date: 2025-09-30

Last Update: 2025-09-26

ACTIVE 709490161v2